G L Booth
[redacted]

Committee Secretary
Joint Standing Committee on Electoral Matter
PO Box 6021
Parliament House
CANBERRA ACT 2600
AUSTRALIA

24 January 2024 *GB JSCEM Inquiry Submission .docx*

INQUIRY INTO THE 2025 FEDERAL ELECTION

Public submission for publishing (with my name) on the internet

Thank you for the opportunity to provide a submission to this inquiry.

ABOUT GRAEME BOOTH

I am a semi-retired Company Director and executive coach. I have worked for 20 years in. State Government and 26 years in engineering consulting firms.

I am dedicating my remaining years to the support and defence of our democracy as a dedication to my family and my community. I am a Director of The Accountability Round Table, a member of Transparency International and the Australian Democracy Network.

I participated as a volunteer on election day at a number of booths in Kooyong and at Kew and Malvern pre-poll booths. I had previously volunteered at the 2022 federal election.

TERM OF REFERENCE - assessment and review of the purported increase in incidents of aggressive conduct, deliberate obstruction, and intimidating behaviour towards voters, political participants, volunteers, and Australian Electoral Commission (AEC) officials;

At the pre-poll stations of Kew and Malvern, I personally witnessed aggressive behaviours that were well beyond anything seen before:

- aggressive and excessive location of corflute signs at sites with limited space forcing voters to run a narrow gauntlet to get to polling;
- incidents of physical intimidation and verbal abuse well above what is tolerable
- I encountered three instances of individuals impersonating electoral officials.

The misconduct was not just perpetrated by 'party activists' but also external groups with significant resources – the Exclusive Brethren and the Advance group.

AEC officials seemed powerless and in any case lacked the resources to intervene.

What I seek under this Term of Reference:

See the next term of reference.

TERM OF REFERENCE - potential reform of safety and security arrangements, including consideration of the powers, processes, and capacity of the AEC to manage and address increasingly threatening or disruptive behaviour;

Pre-poll

While the reasons for a voter to vote at pre-poll are clear, I contend that a mere fraction of these voters actually fit the triggers properly. The consequence is a huge growth in pre-polling- largely for convenience. A consequence of that is over-crowding at pre-poll stations. In the case of Kooyong this combined with overly aggressive behaviours outside the Booths.

What I seek under this Term of Reference:

Voters seeking to use pre-poll should know that they will have to qualify to vote at pre-poll and make a declaration accordingly.

A code of conduct should exist for volunteers at all voting stations, particularly pre-poll. This should include a requirement that voters queuing outside the 6m exclusion zone be free from harassment. A clearway should be maintained on approach. Supervisors under AEC direction/authority should be able to intervene. Abusive language should be an offence.

TERM OF REFERENCE - the suitability and potential reform of measures to ensure universal voter access, including polling booth availability and location, early voting, remote polling, and postal voting arrangements; and

Postal Voting

Again major parties adopted the practice of encouraging voters to apply for Postal Votes by returning their applications via the parties. That unfairly and incorrectly allowed the parties to harvest valuable personal contact data on the way through.

What I seek under this Term of Reference:

Dealings with the electoral system by other than the AEC should be banned.

Polling Booth Location

I am quite satisfied with the location and arrangement of practically all polling booths on election day. Pre-polling is quite a different matter. I suggest the disgraceful behaviour I observed at pre-poll stations at Kew and Malvern were not replicated at the 10 polling stations I visited in Malvern, Prahan and Toorak on election day.

Pre-poll stations are frequently over-crowded with voters and volunteers blocking public footpaths and disrupting traffic.

Many of the very good facilities used on election day are not available for pre-poll. We need to do better with pre-poll facilities and reverse the current voter preference for pre-poll (see above).

What I seek under this Term of Reference:

Improve the location and capacity at pre-poll stations.

Encourage voters to vote on election day- both carrot and stick measures.

TERM OF REFERENCE - the suitability of the current authorisation framework and requirements, having regard to the evolution of communication methods and technology.

There was a time when authorisation requirements were an effective part of candidates being able to be judged by statements they make. That mechanism is now quite ineffective in addressing a time of mis and did-information by parties, candidates and, critically, third parties.

What I seek under this Term of Reference:

Replace outmoded authorisation requirements with more wide-ranging controls on mis and dis-information.

TERM OF REFERENCE - the implementation and operation of the electoral reform passed by the 47th Parliament, particularly regarding the use of money or capital in the most recent election.

The so-called reform, the timing of its introduction into Parliament and avoidance of full Parliamentary scrutiny was one of the most cynical moves by any Government I have seen. It visibly sought to entrench the 2-party system. It did so at a time when Australians are losing faith in that asystem.

It will discriminate unfairly against non-party candidates and new-entrants and in that way is fundamentally un-democratic. Charities are treated unfairly.

'Social harm 'donations and 'government contractor' donations were left untreated.

What I seek under this Term of Reference:

The concept of an 'independent campaign entity' that upon registration will enable a registered independent candidate to be treated the same way as a 'political party' under the Electoral Act should be introduced. Related legislation, including access to the electoral roll and financial disclosure timelines should likewise be equalised.

Political donations from entities that inflict social harm for profit, such as tobacco, fossil fuels, gambling and liquor business entities should be banned.

Political donations from substantial Commonwealth government contractors and bidders for Commonwealth government contracts should be banned.

TERM OF REFERENCE - reforms to address the ongoing threats of interference in our electoral system, both foreign and domestic.

Mis and Dis-information

Mis and disinformation appear in protected Australian election advertising which unlike commercial advertising is not subject to truth in advertising laws. This may be the biggest threat of all to our democracy. In an increasingly complex world where the big challenges of our time are inter-connected and complex, the ability of the common voter to make judgements based on reliable information is critical. Traditional sources of un-biased information are in decline. Vested interests use mis and dis-information with impunity.

Introduce Truth in Political Advertising laws.

Disclosure of Donations

There is no reason why real disclosure in real time cannot be mandated.

What I seek under this Term of Reference:

Require real-time disclosure of donations above the disclosure threshold by a recipient within 7 days of the donation threshold being exceeded.

TERM OF REFERENCE - the composition of the Parliament as a whole, including: the length of the parliamentary term; the potential for fixed terms; and the number of elected representatives relative to the growth in population and the electorate

What I seek under this Term of Reference:

Reduce the politicisation of calling and election by fixing Parliamentary terms.

Increase the current 3-year maximum term for the lower house to 4 years.

Yours sincerely

[redacted]

Graeme Booth